Executive Order.

The Consular Regulations are hereby amended as follows:

Paragraph 1 is replaced by the following:

1. *Classification.*—The consular service of the United States consists of consuls general, consuls general at large, consuls, vice consuls de carriere, vice consuls, consular assistants, interpreters, student interpreters, marshals, consular agents and clerks at consulates.

Paragraph 2 is replaced by the following:

2. *Consular officers.*—The term "consular officer" shall be deemed to include consuls general, consuls, vice consuls, interpreters in consular offices, student interpreters and consular agents, and none others. (R. S. Sec. 1674; 38 Stat. L. 806.)

Paragraph 3 is replaced by the following:

3. *Principal consular officers.*—"Consul general" and "consul" shall be deemed to denote full, principal and permanent consular officers as distinguished from subordinates and substitutes. (R. S. Sec. 1674; 38 Stat. L. 806.)

Paragraphs 7 and 8 are combined and revised to read as follows:

7. *Supervisory powers.*—Consuls general are charged with the supervision of the consulates subordinate to them, as hereinafter provided, so far as it can be exercised by correspondence. They will see that the provisions of law and of the regulations are complied with, and that the preparation of the consular correspondence and enclosures is in accordance with the regulations relating thereto. This supervisory jurisdiction, however, does not extend to accounts, consuls general being in no sense auditing officers.

Paragraphs 9, 10, 11 and 12 are combined and revised to read as follows:

9. *Jurisdictional limits.*—Unless otherwise provided, a consul general has supervisory power over all the consulates in the same country, colony or province with himself. Where there are two or more consuls general accredited to the same foreign power their jurisdictional limits are determined by the Secretary of State.

Paragraph 13 is amended to read as follows:

13. *Inspections.*—Permission may be granted to consuls general, if circumstances shall at any time seem to require it, to visit the several consulates in their respective jurisdictions for the purpose of inspection and report. These visits will not, however, be authorized to be made more frequently than once a year, and such authorization must be obtained in advance from the Secretary of State. The actual and necessary expenses for travel and subsistence in making these visits will be paid by the Government.

Paragraph 15 is amended to read as follows:

15. *Economist consuls.*—Whenever the good of the service requires, consuls of classes three, four and five to serve as assistants to consuls general in economic investigational work may be appointed from among candidates who shall have successfully passed an examination equivalent in character to that prescribed by the Civil Service Commission for Economist in addition to the usual oral examination for the consular service; but consuls so specially chosen shall in no case exceed a total number of twenty-five and shall not be eligible for promotion to the higher grades of the consular service until they shall have served satisfactorily at least four years in responsible charge of consulates of class three, four or five. Consuls already in the service of class six or above who have demonstrated their ability to perform the character of economic work required shall be given preference over specially chosen candidates.

Paragraph 10 is canceled.

Paragraph 20 is amended to read as follows:

20. *Consular agents.*—"Consular agents" shall be deemed to denote consular officers subordinate to principal officers exercising the powers vested in them, and performing the duties [illegible] by regulation of the

President, at posts or places different from those at which such principals are located. (R. S. 1674; 38 Stat. L. 806.) Their functions are not, in all respects, as extensive as those of the principal officer. Though they act at places different from the seat of the principal office and their duties are in substance the same toward persons desiring consular services, they act only as the representative of the principal, and are subject and subordinate to him. They are not authorized to correspond with the Department of State, unless through the principal or under exceptional circumstances; they make no returns or reports directly to the Department, and they are not permitted to render accounts or make any drafts for expenditures on the Departments of the Government unless under express instructions.

Paragraph 23 is amended to read as follows:

23. *Consular assistants.*—The term "consular clerk" is abolished and is replaced by the term "consular assistant" wherever it appears in these Regulations.

The President is authorized to appoint consular assistants, not exceeding forty in number, who shall be citizens of the United States and over 21 years of age at the time of appointment. They cannot be removed from office except for cause, stated in writing, which shall be submitted to Congress at the session first following such removal. They may be assigned, from time to time, to such consulates and with such duties, as the Secretary of State may direct. When so assigned, they are subordinate to the principal consular officer at the post. They will perform such clerical or other duties of the consulate as he may designate, and carefully observe and obey his instructions in all respects. (R. S. Secs. 1704, 1705; 35 Stat. L. 180; 40 Stat. L. 1334.)

Paragraph 24 is amended to read as follows:

24. *Examination for appointment.*—Consular assistants shall be appointed after examination under the provisions of the regulations governing their appointment, as prescribed in Executive Order of June 27, 1906, amended by an Act approved May 21, 1908. (R. S. Sec. 1753.)

Paragraph 25 is amended to read as follows:

25. *Interpreters.*—Interpreters are stationed only at certain consulates in countries where language difficulties render them necessary. The sums appropriated for this service are expended under the direction of the Secretary of State. For obvious reasons the selection of persons for these appointments is usually made from residents of the particular country, whose acquaintance with the language and customs may have qualified them for the office. Their nomination is generally intrusted to the consuls.

A new paragraph, to be known as 25½, is added after paragraph 25, to read as follows:

25½. *Student interpreters.*—The President is empowered to appoint student interpreters at the legation to China, the embassy to Japan, and the embassy to Turkey. (35 Stat. L. 672.) Student interpreters are appointed and promoted in accordance with the rules and regulations promulgated by the Board of Examiners provided for this purpose in an Executive Order of June 27, 1906.

Paragraph 27 is amended to read as follows:

27. *Clerks at consulates.*—These shall, so far as practicable, be appointed under civil service rules and regulations. (Act of June 4, 1920.) In practice they are frequently nominated by the consuls, but their employment is subject to approval by the Secretary of State. In nominating persons for clerks consuls mus' give their qualifications in the form prescribed by the Department, together with the proposed amount of compensation of each clerk, and the allowance from which he or she is to be paid. No clerk shall be employed or promoted without the authority of the Secretary of State.

Paragraph 32 is amended to read as follows:

32. *Appointments and promotions.*—

(1) Vacancies in the office of consul general and in the office of consul above class six shall be filled by promotion from the lower grades of the consular service, based upon ability and efficiency as shown in the service, provided, however, that, whenever the good of the service requires, consuls of classes

three, four and five to serve as assistants to consuls general in economic investigational work may be appointed from among candidates who shall have successfully passed an examination equivalent in character to that prescribed by the Civil Service Commission for Economist in addition to the usual oral examination for the consular service; but consuls so specially chosen shall in no case exceed a total number of twenty-five and shall not be eligible for promotion to the higher grades of the consular service until they shall have served satisfactorily at least four years in responsible charge of consulates of class three, four or five. Consuls already in the service of class six or above who have demonstrated their ability to perform the character of economic work required shall be given preference over specially chosen candidates.

(2) Vacancies in the offices of consul of class six and class seven shall be filled—

(*a*) By promotion, on the basis of ability and efficiency as shown in the service, of vice consuls, consular assistants, and interpreters in the diplomatic or consular service who shall have been appointed to such offices upon examination.

(*b*) By new appointments of candidates who have passed a satisfactory examination for appointment as consul as hereafter provided.

(3) Persons in the service of the Department of State with salaries of two thousand dollars or upwards shall be eligible for promotion, on the basis of ability and efficiency as shown in the service, to any grade of the consular service above class three of vice consuls.

(4) The Secretary of State, or such officer of the Department of State as the President shall designate, the Director of the Consular Service, the Chief of the Consular Bureau, and the Chief Examiner of the Civil Service Commission, or some person whom said Commission shall designate, shall constitute a Board of Examiners for admission to the consular service.

(5) It shall be the duty of the Board of Examiners to formulate rules for and hold examinations of applicants for admission to the consular service.

(6) The scope and method of the examinations shall be determined by the Board of Examiners, but among the subjects shall be included at least one modern language other than English; the natural, industrial and commercial resources and the commerce of the United States, especially with reference to the possibilities of increasing and extending the trade of the United States with foreign countries; political economy; elements of international, commercial and maritime law.

(7) Examination papers shall be rated on a scale of 100, and no person rated at less than 80 shall be eligible for certification.

(8) No one shall be examined who is under twenty-one or over fifty years of age, or who is not a citizen of the United States, or who is not of good character and habits, and physically and mentally qualified for the proper performance of consular work, or who has not been specially designated by the President for appointment to the consular service subject to examination.

(9) Whenever a vacancy shall occur in the sixth or seventh class of consuls which the President may deem it expedient to fill, the Secretary of State shall inform the Board of Examiners, who shall certify to him the list of those persons eligible for appointment, accompanying the certificate with a detailed report showing the qualifications, as revealed by examination, of the persons so certified. If it is desired to fill a vacancy in a consulate in a country in which the United States exercises extra-territorial jurisdiction, the Secretary of State shall so inform the Board of Examiners, who shall include in the list of names certified by it only such persons as have passed the examination provided for in this order, and who also have passed an examination in the fundamental principles of the common law, the rules of evidence, and the trial of civil and criminal cases. The list of names which the Board of Examiners shall certify shall be sent to the President for his information.

(10) No promotion shall be made except for efficiency, as shown by the work that the officer has accomplished, the ability, promptness and diligence displayed by him in the performance of all his official duties, his conduct and his fitness for the consular service.

(11) In designations for appointment subject to examination and in appointments after examination, due regard will be had to the rule, that as between candidates of equal merit, appointments should be so made as to secure proportional representation of all the States and Territories in the consular service; and neither in the designation for examination or certification or appointment will the political affiliations of the candidate be considered. (E. O. June 27, 1906. E. O. Aug. 26, 1919.)

A new paragraph, to be known as 42½, is added after paragraph 42, to read as follows:

42½. *Consular agents.*—Consular agents are appointed by the Secretary of State, usually upon the nomination of the principal consular officer. The privilege of making such nominations must not be construed to limit the authority of the Secretary of State to appoint these officers without such previous nomination by the principal officer. (R. S. Sec. 1695; 15 C. Cls. R. 64.)

Paragraph 47 is amended to read as follows:

47. *Vacancies.*—Whenever a vacancy occurs in any consular office, among either the commissioned or noncommissioned staff, from any cause whatever, the officer in charge shall immediately report the fact to the Department of State.

Paragraph 64 is amended to read as follows:

64. *Office rooms.*—The selection of office rooms and the amount to be paid for office rent are intrusted to the consular officer, subject to the approval of the Secretary of State, obtained in advance. The actual expense of rent is allowed him for this purpose; but all arrangements and obligations respecting the leasing of premises and the amount and terms of payment are made by the consular officer, and the Government assumes no responsibility therefor. When suitable offices have been obtained, they should not be changed, except for good cause, to be reported to the Department of State. It will be required that the same offices be retained until the lease expires, unless there exists some controlling reason justifying the change, the nature of which should be reported to the Department. (Paragraphs 61, 67.)

WOODROW WILSON

THE WHITE HOUSE,
16 November, 1920.

[No. 3354.]